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AGREEMENT FOR COLLABORATIVE RESEARCH PROGRAM

ADVANCED RESEARCH AND INNOVATION CENTER (ARIC)

between

AEROSPACE HOLDING COMPANY (AHC)

and

KHALIFA UNIVERSITY OF SCIENCE AND TECHNOLOGY (KHALIFA UNIVERSITY)

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This agreement (the "**Agreement**") is made this 28 day of November 2022 (the **Signature Date**)

BETWEEN:

(1) Aerospace Holding Company LLC (AHC), a limited liability company established under the laws of the Emirates of Abu Dhabi, and whose principal address is PO. Box 45005, Abu Dhabi , United Arab Emirates (**AHC**); and

(2) Khalifa University of Science and Technology, an independent legal entity established by Law number (5) for the year 2017, as amended, having its place of business in the UAE Emirate of Abu Dhabi, P.O. Box 127788 (**Khalifa University**).

AHC and Khalifa University shall be referred to herein either individually as a **Party** or collectively as the **Parties**.

WHEREAS:

(A) Khalifa University is an independent, non-profit co-educational institution with the vision to be a leading international center of higher education in technology and science. Khalifa University endeavors to serve the Emirate of Abu Dhabi, UAE society, the region and the world.

(B) AHC is a wholly owned subsidiary of Mubadala Investment Company PJSC, which is a wholly owned investment vehicle of the Government of Abu Dhabi with the mandate to generate sustainable economic benefits for Abu Dhabi through the development of, and investment in, business ventures related to wide range of sectors (including aerospace and aviation) in partnership with local, regional and international investors.

(C) AHC and Khalifa University of Science, Technology and Research entered into a definitive agreement on 28 October 2013 concerning the creation of the "Aerospace Research and Innovation Center" at Khalifa University of Science, Technology and Research (the "**Initial Center**").

(D) AHC and Khalifa University signed a further agreement relating to the Initial Center on 29 September 2019.

(E) AHC and Khalifa University have executed various joint research projects in the Initial Center and continue to have a common interest in the advancement of technology and knowledge in the aerospace and aviation areas.

(F) AHC and Khalifa University have agreed to continue their collaboration for a four (4) year period on a jointly-funded research Program to be executed at Khalifa University with a primary focus on four (4) main research areas:

a. Advanced Materials and Processing Technologies, which includes Additive Manufacturing, Advanced Composite Processing Techniques, Thermoplastic Materials and Processes, Graphene Applications, and Multi-Functional Materials;
b. Applied Digital Technologies for Part Manufacturing and Operations (**MRO**) operations, which includes Robotic Manufacturing and Assembly Technologies, Robotic Inspection Systems, Industrial Internet of Things (**IIOT**), Artificial intelligence (**AI**), Virtual Intelligence (**VI**), and Blockchain;
c. Applied Technologies for Healthcare, which includes Digital Solutions such as Artificial Intelligence (**AI**), Virtual Reality (**VR**), and Blockchain, Robotic Solutions at Point of Care

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(**POC**), Additive Manufacturing for Medical Devices and Surgical Tools, Bio-sensing, and Exoskeleton;

d. Applied Technologies for Sustainability, which includes Water Filtration and Desalination, Energy Storage, Alternative Energy Solutions, Highly Efficient Heat Exchangers for Cooling, and Cathode and Anode Materials for Batteries and Energy Storage Systems.

(G) To reflect the broader focus of the proposed research activities, the research center shall be known as the "Advanced Research and Innovation Center" ("**ARIC**" or the "**Center**").

(H) Strata Manufacturing PJSC (**Strata**) and Sanad Aerotech LLC (**Sanad**) are wholly-owned subsidiaries of Mubadala Investment Company PJSC and will be among the beneficiaries of the Program.

(I) This Agreement captures the commitment of the Parties to jointly-fund the execution of the Program, which comprises of specific Research Projects in the four (4) main areas described in recital (F).

(J) The Parties wish to agree, through this Agreement, how the Program shall be funded and managed over the Term, including agreeing ownership and exploitation of intellectual property rights created as a result of implementing the Program.

NOW, THEREFORE, it is agreed as follows:

1. INTERPRETATION

1.1 In this Agreement:

Affiliate shall mean in respect of a Party, any body corporate which:

i. directly or indirectly controls the Party in question;

ii. is directly or indirectly controlled by the Party in question; or

iii. is directly or indirectly controlled by a company (which shall include any body corporate) which controls the Party in question;

for the purposes of this definition, a company is directly controlled by another company holding shares carrying more than fifty percent (50%) of the votes exercisable at a general meeting (or equivalent meeting) of the first mentioned company; and a particular company is indirectly controlled by a company (hereinafter referred to as the "**Parent Company**") if a series of companies can be specified beginning with the Parent Company and ending with a particular company, so related that each company in the series, except the Parent Company, is directly controlled by one or more of the preceding companies in the series. For the purposes of this definition, Strata Manufacturing PJSC, Sanand Aerotech LLC and Mubadala Investment Company PJSC shall be deemed to be an Affiliate of AHC and, for the avoidance of doubt, the Government of Abu Dhabi shall not be considered a Parent Company or an Affiliate of AHC.

Agreement shall mean the provisions of this document and shall include the Appendices.

Background IPR shall mean any information and technology, including IPR, made available by a Party for the purposes of the Program, which was (i) in existence prior to the commencement of the Program; or (ii) generated after the commencement of the Program but outside of the Program, and to which either of the Parties has the necessary rights for the purposes of the Program.

Center shall mean the "**Advanced Research and Innovation Center**" at Khalifa University, as identified in Recital (G).

Confidential Information shall mean information disclosed under this Agreement which relates to price, technical, design or other commercial information relating to these issues, which concerns the business or business interests of the Parties, including the existence and content of this Agreement, and any such information disclosed prior to the Signature Date of this Agreement.

Deliverables shall mean the agreed deliverables approved by the SMB and identified in each Research Project plan.

Foreground IPR shall mean new IPR arising or developed by the Parties (whether jointly or individually) under this Agreement as a result of the Parties implementing the Program.

In-Kind Contribution has the meaning set out in Clause 4.9.

IPR shall mean any rights in or to any patents (including petty patent), inventions, copyright, database rights, design rights, registered designs, utility models, trade-marks and service marks (whether registered or unregistered), moral rights, know-how or confidential information in intellectual property, whether registerable or not and wherever existing in the world and including all applications and rights to apply for any of the foregoing rights.

Joint IPR has the meaning set out in Clause 7.3.

Program shall mean the agreed research program scope comprising various Research Projects, as described in this Agreement, and as may be revised, amended and / or updated from time by the SMB, in accordance with Clause 3.

Research Project shall mean a research project to be undertaken by the Center, as agreed by the SMB.

SMB shall mean the senior management board comprising of three (3) representatives from each Party, which will provide overall management and guidance regarding the conduct of the Center and the Program, as further described in Clause 3.

Term shall mean the period of four (4) years.

2. PURPOSE AND SCOPE

2.1 The Parties shall work jointly and individually, and always in good faith with respect to each other, to achieve the Program, in accordance with the terms of this Agreement.

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2.2 This Agreement:

(a) Shall not prevent either Party from entering into similar agreements with other parties;
(b) Shall not commit either Party to enter into any other agreement arising from, or in connection with, the Program, other than for a license(s) of the Background IPR and Foreground IPR, as provided for in this Agreement;
(c) Places no obligations on the Parties to use, implement or conform to any of the results obtained; and
(d) Does not imply any commitment on the part of either Party to procure equipment, devices or services from the other Party and shall not limit either Party's freedom of procurement.

3. MANAGEMENT

The Senior Management Board

3.1 The Parties' members of the SMB shall be:

AHC:

(1) Dr. Abdel Qader Abusafieh
Email: aabusafieh@strata.ae
(2) Abdalla Al Mulla
Email: abalmulla@mubadala.ae
(3) Hashem Al Kaabi
Email: hmalkaabi@hub71.com

Khalifa University:

(1) Senior Vice President, Research and Development - Dr. Steve Griffiths
Email: steven.griffiths@ku.ac.ae
(2) Prof. Lakmal Seneviratne
Email: lakmal.seneviratne@ku.ac.ae
(3) Prof. Samuel Mao
Email: samuel.mao@ku.ac.ae

Each Party shall be entitled to replace any of its members of the SMB or to appoint a deputy or proxy who may act in place of any such appointed member.

The Khalifa University Senior Vice President – Research and Development shall be appointed as Chairman of the SMB.

3.2 The SMB shall meet no less frequently than four (4) times in any twelve (12) month period.

3.3 The purpose of the meetings of the SMB will be to:
(a) set the objectives and direction of the Program;
(b) agree on the detailed annual budget, milestones and key performance indicators (**KPI**s); and
(c) agree on the operational plans, including project staffing;

for each year of the Term.

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3.4 The SMB shall review progress against these objectives, milestones and KPIs. A more detailed description of the main functions of the SMB is contained in **Appendix 1** to this Agreement.

3.5 A meeting of the SMB shall be quorate if at least two (2) members (or his/her deputy or proxy) from each Party are present.

3.6 Agreement amongst the SMB will be by unanimous vote of all SMB members present at a meeting of the SMB.

3.7 Each Party shall ensure that its representatives on the SMB, whether past or present, keep confidential all Confidential Information disclosed to them on the terms of confidentiality that apply to that Party under this Agreement.

ARIC Program Director and the ARIC Program Deputy Director

3.8 The Parties hereby agree that Khalifa University shall designate two (2) Khalifa University faculty members to drive execution of research activities within the four (4) technology areas defined in recital (F) (**Focus Areas**) and to coordinate administrative activities associated with these activities within Khalifa University, including HR, finance, legal, security and communications. These two individuals will be named the ARIC "Program Director" and the ARIC "Program Deputy Director". The existing Program Director and Program Deputy Director shall continue in post for a period of six (6) months from the Signature Date.

3.9 The Parties hereby agree that at the end of the six (6) month period contained in Clause 3.8, the SMB shall appoint the ARIC Program Director and the ARIC Program Deputy Director for a period of two (2) years, renewable by approval of the SMB.

In the event that the SMB cannot agree by simple majority on an appointment, the search will continue for other candidates until a simple majority is achieved.

3.10 The ARIC Program Director, supported by the ARIC Program Deputy Director, shall be responsible for coordinating the selection, scoping, staffing, and execution of research projects within the Focus Areas. The ARIC Program Director, supported by the ARIC Program Deputy Director, shall also present the annual budget for the approval of the SMB on an annual basis, manage expenditures against the budget approved by the SMB and provide the SMB with appropriate forecasts and explanations of expenditure. The ARIC Program Director shall also report the progress of the Program to the SMB at such intervals and in such a manner as the SMB may specify.

3.11 All decisions related to budget and resource allocation for the Center (including the identity, skill, experience and remuneration of all personnel appointed or allocated to support the Center) shall be approved by the SMB. All budget and funding decisions shall be made in accordance with the funding allocation mechanics set out in Clause 4 below.

3.12 Within the Khalifa University organizational structure, the Center employees shall conduct day-to-day activities of the Center as an independent function under the management of the ARIC Program Director and the ARIC Program Deputy Director, with the supervision of the Chairman of the SMB.

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3.13 The ARIC Program Director shall be responsible for identifying, selecting and recommending to the SMB suitably qualified and experienced people to work on specific Research Projects. The SMB shall review and either ratify or reject said recommendations and the individuals ratified by the SMB shall be hired by Khalifa University and allocated to the Center to work on the Research Projects.

3.14 The annual objectives and performance reviews of the ARIC Program Director shall be coordinated by the Chairman of the SMB, with direct input from all other members of the SMB.

AHC Program Manager

3.15 AHC shall assign a Project Manager (**APM**) to coordinate Program matters and issues within Khalifa University relevant to the Program on a day-to-day basis in coordination with the ARIC Program Director, the ARIC Program Deputy Director and Khalifa University management and staff. The APM will also serve as a liaison between the Center, AHC and the Beneficiary Assets to facilitate smooth, pragmatic, technical, legal, and financial transactions at both the Research Project and at the Center(s) levels.

The APM will be charged as thirty percent (30%) Full–Time Equivalent (FTE) to the Center's budget, with a maximum of three hundred thousand dirhams (300,000 AED) plus VAT per year. The APM shall be one of the three (3) AHC members on the SMB.

The APM for the Term shall be Dr. Abdelqader Abusafieh.

General

3.16 The Parties hereby agree that the Center will designate two (2) Center employees to work closely with AHC assets as technical liaisons on the Research Projects to provide technical support and understand project requirements. The two (2) employees will spend at least 50% of their time at these assets.

3.17 Both Parties acknowledge that, from time to time, their human resources allocated to work in the Program (whether hired by Strata and/or Khalifa University) may be required to pass certain appropriate security clearance(s) by the relevant UAE or other authorities. Each of the Parties shall use reasonable efforts to achieve such clearance. Any associated third party costs incurred for obtaining the required clearances will be covered by Center Funds (as defined in Clause 4.4).

3.18 The Parties recognize that structured participation of Khalifa University research personnel allocated to each Research Project (for example the ARIC lab manager, research assistants, laboratory technicians, post-doctoral researchers and ARIC sponsored students) or AHC Affiliate engineers and technicians shall be necessary to execute each of the Research Projects. The Parties agree to identify the involvement and function of each individual's participation to the Program and their cost shall be treated as part of the operating cost of the center, and not as in-kind contribution by either Party. Such cost participating individuals shall be included in the annual budgeting cycle to be approved by the SMB.

4. FINANCES

4.1 Each Party shall bear its own costs associated with the preparation and execution of this Agreement.

4.2 The Parties agree that the Center will be funded on an equal basis from AHC and Khalifa University in accordance with this Clause 4 and that the funding contributions to be made by each Party from the Signature Date are set-out in Clause 4.4.

4.3 The Parties acknowledge that any unused budget, left over from previous phases of the ARIC program, shall be automatically transferred to this phase of the ARIC Program upon execution of this Agreement.

4.4 Over the Term, the Parties shall make the following funds available to the Center:

(a) AHC shall make available a total of ten million dirhams (10,000,000 AED) in cash, plus VAT (the **AHC Funds**);

(b) Khalifa University shall make available a total of ten million dirhams (10,000,000 AED) in funding for the Center, comprising eight million dirhams (8,000,000 AED) in cash and two million dirhams (2,000,000 AED) in-kind (the **Khalifa University Funds**);

(collectively, the **Center Funds**).

The cash funding allocation from AHC and Khalifa University for the Center shall be paid according to the following schedule:

Year	2023	2024	2025	2026
AHC contribution (AED) excluding VAT	2,500,000	2,500,000	2,500,000	2,500,000
Khalifa University contribution (AED)	2,000,000	2,000,000	2,000,000	2,000,000
Total cash contributions (AED)	4,500,000	4,500,000	4,500,000	4,500,000

4.5 Khalifa University shall invoice AHC on 1 December and 1 June each year during the Term, for AHC annual contributions detailed in the table contained in Clause 4.4, as follows:

1 December 2022	AED 1,500,000 plus VAT;
1 June 2023	AED 1,000,000 plus VAT;
1 December 2023	AED 1,500,000 plus VAT;
1 June 2024	AED 1,000,000 plus VAT;
1 December 2024	AED 1,500,000 plus VAT;
1 June 2025	AED 1,000,000 plus VAT;
1 December 2025	AED 1,500,000 plus VAT; and
1 June 2026	AED 1,000,000 plus VAT.

4.6 AHC shall invoice Khalifa University for the APM, as detailed in Clause 3.15, on an annual basis on 1 June during the Term, as follows:

1 June 2023	AED 300,000 plus VAT;
1 June 2024	AED 300,000 plus VAT;
1 June 2025	AED 300,000 plus VAT; and
1 June 2026	AED 300,000 plus VAT.

4.7 Khalifa University shall transfer their annual contributions detailed in the table contained in Clause 4.4 to the Center Funds as follows:

15 January 2023	AED 1,200,000;
1 June 2023	AED 800,000;
15 January 2024	AED 1,200,000;
1 June 2024	AED 800,000;
15 January 2025	AED 1,200,000;
1 June 2025	AED 800,000;
15 January 2026	AED 1,200,000; and
1 June 2026	AED 800,000.

4.8 **All amounts contained in this Agreement are <u>exclusive</u> of value added tax ("VAT"), or other similar taxes, and UAE VAT or other similar taxes, shall be invoiced be each Party at the standard rate, as applicable, at the time of charging.**

4.9 The Parties acknowledge that, since the Center is not a separate legal entity, any funds paid or made available by the Parties shall be transferred to a separate Khalifa University Center account, created by Khalifa University for the Center, to be utilized by the SMB pursuant to this Agreement.

4.10 The Center Funds may only be drawn down:

(a) If approved by unanimous decision of the SMB.

(b) In accordance with the procedure set out in Clause 4.8.

4.11 The ARIC Program Director and the ARIC Program Deputy Director, in coordination with the APM shall be responsible for recommending to the SMB that a Draw Down Notice (as defined in Clause 4.12) be issued by the SMB to AHC and Khalifa University to support the execution of the Program.

4.12 If the SMB unanimously approves the draw-down of the Center Funds, the SMB shall issue each of AHC and Khalifa University with a written notice (a "**Draw Down Notice**") that specifies:

(a) The amount to be drawn down (the "**Drawn Amount**");

(b) A description of the purpose for which the Drawn Amount is to be used.

4.13 The Parties agree that any monies contributed to the Program that remain unused at the end of any year during the Term shall be automatically rolled over to the following year and added to the newly contributed funds.

4.14 The Parties agree that any monies contributed to the Program that remain unused at the end of the Term shall be returned to AHC and Khalifa University, based on the ratio of the Parties' contribution to the Program, unless it is agreed by both Parties to extend this Agreement.

4.15 Details of the Center Funds (including their allocation and monthly spend) shall be made available to the APM and the SMB at all times.

4.16 Khalifa University's total contribution to the Program shall include twenty per cent (20%) in-kind (non-cash) contribution, as detailed in Clause 4.4(b) above) as a recognition for providing space and all required support services for the Program such as HR, marketing, finance and accounting, administration, facilities management, utilities, IT, use of laboratory space and facilities and office space for the APM and Research Project teams, furniture, provision of ICT infrastructure and other similar services. AHC contribution to the Center shall be in cash only but may, from time to time, provide technical services to the Center, through its Beneficiary Assets, which will be compensated from the Center's approved budget, with the approval of the SMB.

4.17 A detailed annual budget shall be prepared and submitted by the ARIC Program, the ARIC Program Deputy Director and the APM to the SMB for approval no later than December 15 of each year. The SMB shall review and approve the budget within one (1) month of the submittal date.

5. TERM

This Agreement shall commence on the Signature Date and, unless terminated in accordance with the terms of Clause 12, shall continue in full force and effect for the Term.

6. CONFIDENTIALITY

6.1 All information, including all Confidential Information, shared under this Agreement by one Party ("**Provider**") to the other Party ("**Recipient**") will, unless it is made expressly clear by the Provider on, or with the disclosure at the time, be available for sharing with the Recipient solely for the purpose of achieving the Program and Deliverables in accordance with this Agreement.

6.2 Without prejudice to Clause 6.1, and in respect of all Confidential Information, whether of a technical nature or otherwise communicated by the Provider to the Recipient in connection with this Agreement, whether before or after execution of this Agreement, each Party undertakes to the other that:

(a) It will not use any such Confidential Information for any purpose other than the carrying out of its obligation, or making use of its right, under this Agreement, or other than in accordance with the terms of this Agreement; and

(b) It will (and will ensure that its employees and sub-contractors) treat the Confidential Information as confidential and use the same degree of care as the Recipient uses for its own confidential information of like sensitivity and not disclose it to any other persons without the written consent of the Provider,

provided always that such undertakings shall not extend to any Confidential Information which is:

i. In the possession of the Recipient at the date of receipt from the Provider; or
ii. Is public knowledge (otherwise than by reason of any breach of confidentiality obligation to the Provider by the Recipient); or

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iii. Obtained by the Recipient from another person in good faith without breach of confidentiality obligation to the Provider; or
iv. Independently acquired by the Recipient as a result of work carried out by a person to whom no disclosure of the relevant Confidential Information has been made; or
v. Released in compliance with legal obligations to provide Confidential Information to government, regulatory authorities or judicial authorities.

(c) Nothing in this Clause 6.2 shall prevent the communication of Confidential Information to any third party insofar as is necessary for carrying out the Program. AHC shall be entitled to share Confidential Information with any wholly owned subsidiary of Mubadala Investment Company PJSC or any of its customers participating in the Research Projects, subject always to AHC being liable for the acts or omissions of such third parties, regarding the protection and / or disclosure of Confidential Information.

6.3 Regarding any permitted communication of such Confidential Information by the Recipient to any other person, the Recipient shall require such other person to first sign a non-disclosure agreement of equivalent scope to the undertaking in Clause 6.2 and the Recipient shall use all reasonable endeavors to ensure due observance and performance by such other person of the provisions of such non-disclosure agreement.

6.4 Any information relating to AHC Affiliates and their OEM customers which has been exchanged with or disclosed to Khalifa University staff participating in a Research Project, either indirectly through AHC Affiliates or directly through the OEM customers during the course of a Research Project, shall constitute Confidential Information.

7. INTELLECTUAL PROPERTY RIGHTS (IPR)

Title to Background IPR and Foreground IPR

7.1 Nothing in this Agreement shall have the effect of transferring or assigning a Party's ownership rights or title in any of its Background IPR.

7.2 From time to time, each Party ("**Notifying Party**") shall notify the other Party of any Background IPR owned by it or licensed to it that may be of use for the purpose of achieving the Program and the Deliverable. If both Parties agree that such Background IPR may be of use, the Notifying Party shall:

(a) grant, subject to any existing confidentiality obligation and the confidentiality obligations under this Agreement, a license of the relevant Background IPR owned by it; and / or
(b) use reasonable endeavors to procure a sub-license of the relevant Background IPR licensed to it by a third party,

in each case to the other Party for the sole purpose of achieving the Program and the Deliverables.

Any such license of Background IPR will be on a royalty-free basis. However, in exceptional circumstances, such as where Background IPR is licensed from a third party on commercial terms, then exceptions to such Background IPR licensing rules may be agreed and if so these will be specifically between the Parties acting in good faith.

7.3 Subject to the provisions of Clause 7.8, all Foreground IPR arising from the implementation of the Program shall be owned by the Parties jointly in equal shares ("**Joint IPR**"). Subject to Clause 7.4, each Party:

a) shall be entitled to use and exploit such Joint IPR for its own business purpose; and
b) shall have the right to grant sub-licenses to any of its Affiliates, in each case without payment or permission from the other Party, but upon giving notice within thirty (30) days thereof.

7.4 If either Party wishes to have exclusive rights in any Joint IPR, then such Party shall issue the other Party with a notice in writing and the Parties shall negotiate in good faith, taking into account the current business practices and standards related to the particular technology at the time.

Ownership of IPR in developments to Joint IPR made by a single Party

7.5 All IPR that are developed or created independently by a single Party in any exploitation of joint IPR pursuant to Clause 7.3 shall be owned by the developing or creating Party.

Disclosure of Foreground IPR

7.6 The Parties will each make all reasonable efforts to ensure that their respective Research Project personnel prepare, sign and submit regular written disclosures of Research Project IPR ("**IP Disclosure**") to Khalifa University's "Office of Technology Management and Innovation" (ip@ku.ac.ae), prior to any public disclosure thereof. Within thirty (30) days of receipt of an IP Disclosure, the SMB will be provided with a copy of the IP Disclosure, together with a general description of any Background IPR, to the extent the Office of Technology Management and Innovation reasonably believes that any Background IPR is necessary to allow a successful exploitation of the matters set forth in the IP disclosure.

7.7 Where the Parties create Joint IPR and decide to apply for registration of such Joint IPR, the Parties shall jointly apply for registration in joint names (or, if permissible under the law of the relevant territory, nominate one of the Parties to register in joint names on behalf of both Parties) the Joint IPR in the United Arab Emirates and elsewhere, if such Joint IPR is capable of registration. The Parties shall agree on a case-by-case basis the territories other than the United Arab Emirates in which such Joint IPR shall be protected. The Parties agree that the costs of such protection shall be shared equally between the Parties. The total costs contributed by each Party with respect to such protection shall be mutually agreed between the Parties in writing prior to incurring such expenditure.

Licenses to Foreground IPR

7.8 The Parties hereby grant to each other a fully-paid up, global, perpetual, non-exclusive, royalty-free license to their respective interests in the Joint IPR for the limited purposes of internal use, as may be required in the ordinary course of business. Such license expressly includes the business activities of all AHC Affiliates and their customer programs. Such activities shall include business where Joint IPR is, or may be, included or relied upon in any such product or process method.

7.9 Neither Party shall have the right or license to use or exploit any Joint IPR for the principle purpose of deriving any use or royalty fee from a third party without the express prior written authorization from the SMB, voting unanimously.

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7.10 In the event that the SMB agrees to a Party exploiting any Joint IPR for the specific purpose of entering into a license, sub-license or transfer of Joint IPRs to derive a royalty fee or any other kind of financial revenue from a third party, the intention is that each Party will share equally in the profit or financial gain that arises directly from any such transaction. If a Party incurs internal or external costs in the exploitation activities, such costs shall first be recovered by that Party before the foregoing profit share.

Reliance on Foreground IPR

7.11 Subject to Clauses 11 and 12.7, the provisions of this Clause 7 shall survive the expiration or termination of this Agreement.

8. PUBLICATION AND DISCLOSURE PERMISSIONS

8.1 The ARIC Program Director, in coordination with the APM, and operating under processes and controls to be agreed by the SMB, shall be responsible for the day-to-day management of publication and/or disclosure permissions.

For the avoidance of doubt no publication and/or disclosure of information relating to the Program shall be made without the ARIC Program Director's written permission, after review and approval from the APM, which shall be obtained as follows:

a) Khalifa University shall provide AHC with a copy of the proposed publication at least six (6) weeks before the initial submission date and Khalifa University shall provide AHC with the final draft publication and/or disclosure at least one (1) month prior to the publication/disclosure date. No AHC proprietary or industry sensitive information shall be included in such publication and/or disclosure;
b) AHC shall respond in writing to Khalifa University within two (2) weeks of receiving a copy of the proposed publication and/or disclosure from Khalifa University. AHC reserves the right to require Khalifa University to delete from such publication any confidential or industry sensitive information. In the event the publication identifies any patentable invention, Khalifa University agrees to delay such publication for up to an additional three (3) months in order to allow time for the preparation and filing of a patent application.

8.4 AHC shall be acknowledged in any publication unless AHC desires otherwise and so advises Khalifa University in writing.

9. PUBLICITY

9.1 Nothing in this Agreement gives either Party permission to use the other Party's name, trademark or trade name in any publication or respect of any service or item to be supplied to the public, whether relating to the Program, a Deliverable of otherwise and any such use shall be subject to the explicit prior written consent of the other Party.

9.2 Neither of the Parties shall make any press announcement or issue any press release relating to the Agreement nor in any other way publicize this Agreement without the written consent of the other Party.

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10. SETTLEMENT OF DISPUTES

10.1 Should there be a dispute between the Parties in connection with or arising out of this Agreement or the breach, termination or validity hereof (a "**Dispute**"), each Party will use its reasonable endeavours to settle the Dispute through discussion and resolution at the SMB. If any Dispute cannot be resolved by the SMB, within a period of forty-five (45) calendar days, it shall be escalated to the Chairman of Strata and the President of Khalifa University or their respective designees, who shall meet to discuss and resolve the Dispute.

10.2 If the Chairman of Strata and the President of Khalifa University or their respective designees are unable to resolve the Dispute, then the Dispute shall be finally settled in accordance with the rules promulgated by the Abu Dhabi Commercial Conciliation and Arbitration Center (the "**Rules"**). Notwithstanding the foregoing, either Party may seek injunctive relief in any court of competent jurisdiction against the improper use or disclosure of Confidential Information. It is hereby agreed that:

(a) The seat of the arbitration shall be the city of Abu Dhabi;
(b) There shall be three (3) arbitrators, with each Party selecting one (1) arbitrator within fifteen (15) days after the claimant commences the arbitration, by giving written notice of the arbitration and the third (and presiding) arbitrator selected by two (2) arbitrators so selected within thirty (30) days after their appointment. If the two (2) arbitrators cannot agree on the third arbitrator within such thirty (30) day period, the third arbitrator shall be appointed in accordance with the Rules;
(c) The language of the arbitration shall be English;
(d) The award shall be in writing and shall set forth in reasonable details the facts of the Dispute and the reasons for the tribunal's decision; and
(e) The award in such arbitration shall be final and binding upon the Parties and judgment thereon may be entered in any court having jurisdiction for its enforcement.

11. WITHDRAWALS AND NEW MEMBERS

11.1 Either Party (the "**Withdrawing Party**") may withdraw from this Agreement by giving ninety (90) days' written notice to the other Party ("**Notice of Withdrawal**"). The SMB shall convene within fifteen (15) days of receipt of the Notice of Withdrawal and shall agree on the Center obligations existing at the time of the Notice of Withdrawal. The Parties agree to provide funds in equal amounts to meet any residual or outstanding obligations, as determined by the SMB, pursuant to a Draw Down Notice issued by the SMB in accordance with Clause 4.10. At the conclusion of such ninety (90) day period, this Agreement shall terminate.

11.2 All Background IPR licenses granted by the Withdrawing Party prior to it issuing its Notice of Withdrawal shall continue in full force and effect, but only so as to achieve the agreed Deliverables up to the end of the ninety (90) day period specified in Clause 11.1.

11.3 The Withdrawing Party agrees:

(a) In-so-far as the Program or any new Deliverables after the service of the notice in Clause 11.1 above requires on-going licenses to the Withdrawing Party's Background IPR, to negotiate such a license in good faith and on reasonable terms, including reasonable commercial terms.

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(b) That all the rights acquired by the Withdrawing Party to the Background IPR and Foreground IPR of the other Party, prior to its date of withdrawal from the Agreement, shall cease.

11.4 All items and tangible property in the possession of a Party and belonging to the other Party, at the date of termination of this Agreement, will be promptly returned to the owning Party, or destroyed, as instructed by the owning Party.

11.5 In the event that the Parties identify a third party that may have the appropriate technologies and/or resources to contribute to the Center (a "**Prospective Member**"), the Prospective Member shall be invited to join the Center and shall be required to be bound by the terms of this Agreement and such other conditions as the AHC and Khalifa University may specify. In addition, the Prospective Member shall be required to pay a sum at least equal to the contributions that would have been paid if it had joined on the Signing Dates of this Agreement, together with a late entry fee: both sums to be agreed in writing by AHC and Khalifa University, having regard to the lateness of the proposal to join, the relative value of gathered results and the prospects for future significant results being obtained.

12. TERMINATION

12.1 This Agreement may be terminated at any time upon the agreement of both Parties.

12.2 A Party may terminate this Agreement with immediate effect by giving notice to the other Party:

(a) In the event that such Party is affected by a Force Majeure Event (as defined in Clause 17) for longer than eight (8) weeks; or

(b) If the other Party commits a material breach of this Agreement that is capable of remedy, and either fails to remedy, or has not taken substantial steps towards remedying the breach, within a reasonable time frame (no less than thirty (30) days of a written notice to do so); or

(c) If the other Party commits a material breach of this Agreement, which cannot be remedied, or which represents a breach of its confidentiality obligations under this Agreement; or

(d) If the other Party is repeatedly in breach of this Agreement; or

(e) If the other Party is the subject of a bankruptcy order, or becomes insolvent, or makes any arrangement or composition with or assignment for the benefit of their creditors, or goes into either voluntary (otherwise than for reconstruction or amalgamation), or compulsory liquidation or a receiver or administrator is appointed over their assets, or ceases or threatens to case carrying on its business (or any local equivalent).

12.3 If a Party delays in acting upon a breach of this Agreement, that delay will not be regarded as a waiver of the breach. If a Party waives a breach of this Agreement that waiver is limited to that particular breach.

12.4 The termination of this Agreement shall not affect any obligation or right of the Parties, which have accrued prior to such breach.

12.5 In the event of termination both Parties agree that they shall not be held responsible or liable for any outstanding commitments or costs incurred by other Party to this Agreement.

12.6 The provisions of Clauses 1, 6, 7, 8, 9, 10, 12, 13, 14, 15, 20, 21, 25, 26, 27 and 28 shall survive the termination of this Agreement.

12.7 If a Party terminates this Agreement in accordance with Clause 12.2 (other than in respect of Clause 12.2 (a)), that Party may terminate any rights and licenses granted to the other Party under this Agreement.

12.8 If this Agreement is terminated for any reason, any Center Funds that have been drawn down for a specific purpose in accordance with Clause 4 shall remain valid and available to the Center for the approved and specific purpose.

12.9 Subject to Clause 12.8, on termination of this Agreement for any reason, if there are any Center Funds that have been drawn down for a specific purpose in accordance with Clause 4 that have not yet been utilized and are no longer required, such funds shall be returned to the Parties on the basis that they were contributed.

13. INDEMNITY

13.1 Subject to the provisions of Clause 14 below and without prejudice to any other rights or remedies available to it, each Party (an "**Indemnifying Party**") shall indemnify the other Party against all claims and proceedings, damage, costs and expenses arising or incurred in respect of:

(a) Death or personal injury of the other Party's personnel in relation to the performance of the Program, to the extent caused by the Indemnifying Party's own negligence or wilful acts or omission; or

(b) Death or personal injury of any other third party to the extent arising as a result of the negligence or wilful acts or omissions of the Indemnifying Party in relation to the performance of the Program; or

(c) Loss of or damage to any Party's or third party's property to the extent arising as a result of the negligence or wilful acts or omissions of the Indemnifying Party in relation to the performance of the Program.

13.2 Each Party shall notify the other Party in writing of any such allegation received and shall not make any admissions unless the other Party gives prior written consent, such consent shall not be unreasonably withheld or delayed.

14. LIMITATION OF LIABILITY

14.1 Subject to Clause 14.3 below, neither Party shall be liable to the other under or in connection with this Agreement for any indirect or consequential loss or damage.

14.2 Subject to Clause 14.3 below, the total liability of any Party to the other under, or in connection with, this Agreement and for the Term shall not exceed Two Million Five Hundred Thousand Dirhams (2,500,000 AED), being the total annual sum contributed by each of the Parties under this Agreement.

14.3 Clause 14.1 and 14.2 above shall not apply to loss or damage arising out of or in connection with damage suffered which liability cannot be limited or excluded by law.

15. WARRANTY, DEFEND AND HOLD HARMLESS

15.1 A Party shall exercise reasonable care to ensure the accuracy of advice, information or drawings provided to the other Party and the Party receiving such advice, information or drawings shall conduct the necessary due diligence on the same. The Party giving such advice, information or drawings, accepts no liability, contractual or otherwise, in respect of any claim or claims arising from the use of such advice, information or drawings; unless such liability arises from negligence, wilful act or omission.

15.2 Each Party warrants, to the best of its knowledge that the use of any advice, information or drawings provided to the other Party will not result in infringement of any third party rights.

15.4 Subject always to the terms of Clause 15.2 and Clause 15.3, each Party will defend and hold harmless the other Party, its servants or agents, for all claims brought against the Parties in connection with either Party's use, solely or with any Affiliate or third party, of Joint IPR.

16. INSURANCE

16.1 Each Party shall, at its own expense, maintain throughout the Term such insurance as is legally required in the UAE.

16.2 A Party shall notify the ARIC Program Director and the APM, as appropriate, as soon as it is aware of any event, which may give rise to an obligation to indemnify another Party under this Agreement, or to a claim under any insurance required by the Agreement.

17. FORCE MAJEURE

Both Parties shall be excused from performance of their obligation if and to the extent that such performance is prevented by reason of any strike, lockout, labor disturbance, government action, riot, armed conflict, fire, flood, drought, failure of power supply, unavailability or breakdown of normal means of transport, act of God, or other event reasonably beyond a Party's control (a "**Force Majeure Event**"), provided always that both Parties use their respective reasonable endeavors to limit the effect of and, if possible, resolve the Force Majeure Event. If a Party is so delayed and the Force Majeure Event period exceeds thirty (30) days, the matter shall be escalated to the SMB for resolution.

18. BUSINESS PARTNERSHIP

Nothing in this Agreement shall be deemed to create a partnership or agency between the Parties for any purpose.

19. ASSIGNMENT

Subject to having provided prior written notice thereof to the other Party, either Party may assign or transfer either in whole or in part its right and obligation under this Agreement to an Affiliate of such Party. Neither Party shall, without the prior written consent of the other Party, assign or otherwise transfer partially nor totally its rights and obligation under this Agreement other than as provided in this Clause 19.

20. LANGUAGE

This Agreement is drawn up in English and all documents, notice and meetings for its application and /or extension shall be in English.

21. NOTICES

All notices relating to this Agreement shall be given by prepaid first class post or email to the addressee at the address stated below or such other address as the addressee shall have for the time being notified to the other Party. All notices shall be deemed to have been delivered if: (i) by letter, at the expiration of forty-eight (48) hours after posting; (ii) by e-mail, the end of the next working day. Notice of withdrawal or breach shall be given by registered post.

In the case of the AHC, notices shall be delivered to:

Aerospace Holding Company LLC
C/o Mubadala Development Company PJSC
PO Box 45005
Al Mamoura Building A
Intersection of Mirror Road &15th Street
Abu Dhabi, United Arab Emirates

For the attention of: Chairman of Aerospace Holding Company LLC
Telephone: +971 (2) 4130000
With a copy email to legalunit@mubadala.ae

In the case of **Khalifa University**, notices shall be delivered to:

Khalifa University of Science and Technology
PO Box 127788
Abu Dhabi, UAE
For the attention of the General Counsel
general.counsel@ku.ac.ae

With a copy email to Dr. Steve Griffiths, Senior Vice President Research & Development
steven.griffiths@ku.ac.ae

22. HEADINGS

The Clause headings of this Agreement are for reference purposes only and shall not affect its construction.

23. AMENDMENTS

Amendments or changes to this Agreement shall only be valid of made in writing and signed by an authorized signatory of each Party.

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24. SUPERVENING ILLEGALITY

If any provision or item of this Agreement is held to be invalid or illegal under any applicable statement or rule of law such provision shall be deemed omitted from this Agreement to the extent of such invalidity or illegality but the remainder of this Agreement shall continue in full force and effect and the Parties shall negotiate in good faith to replace the invalid or illegal provision or term with a valid and legal provision or term having effect as closely as possible to the provision or term being replaced.

25. THIRD PARTIES

Except as expressly provided in this Agreement, this Agreement shall not confer or purport to confer on a third party any benefit or right to enforce any term of this Agreement However, a right granted to either Party shall extend to any entity which controls that Party, any entity which that Party controls, and any entity under common control with that Party, where "control" means the ownership of majority of the voting rights in an entity, or the ability to direct its management or policies.

26. APPLICABLE LAW

This Agreement shall be governed by and construed in accordance with the laws of the UAE and the laws of the Emirate of Abu Dhabi.

27. WAIVER

No failure to exercise or delay in the exercise of any right or remedy which any Party may have under this Agreement or in connection with the Agreement shall operate as a waiver thereof, and nor shall any single or partial exercise of any such right or remedy prevent any further or other exercise thereof or any other such right or remedy.

28. ENTIRE AGREEMENT

28.1 The Parties hereby acknowledge that the agreement signed by AHC and Khalifa University on 29 September 2019 relating to the Aerospace Research and Innovation Center has, upon signature of this Agreement, expired.

28.2 This Agreement and its appendices, and any other agreements expressly anticipated to be entered into, or licenses granted, under this Agreement, constitute the entire agreement between the Parties in respect of the Program and except as otherwise expressly provided herein supersede all previous negotiations, commitments and writing concerning the Program.

29. FURTHER ASSURANCE

Each Party shall, and shall use reasonable endeavors to, procure that any necessary third party shall execute such documents and do such acts and things as the other may reasonably require for the purpose of giving to the other the full benefit of all the provisions of this Agreement.

WHEREAS the Parties have hereby caused their duly authorized representatives to execute and deliver this Agreement on the date first above written.

SIGNATORIES

DocuSigned by:
Badr Al-Olama
5C9807265111D4EB...

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For and on behalf of **AEROSPACE HOLDING COMPANY LLC**

Name: Badr Al-Olama

Title: Executive Director - UAE Clusters

Date: 25 November 2022

Signed by:Sir John OReilly
Signed at:2022-11-29 11:54:06 +04:00
Reason:I approve this document. Sir Joh

Sir John OReilly

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For and on behalf of **KHALIFA UNIVERSITY OF SCIENCE AND TECHNOLOGY**

Name: Professor Sir John O'Reilly

Title: President

Date: 28 November 2022

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Appendix 1: Role of Senior Management Board (SMB)

a) Set the direction of the Program and approve each Research Project.

b) Approve the annual budgets of the Center.

c) Provide overall management and guidance in the conduct of the Center and the Program.

d) Set the staffing policies for the Center and the Program.

e) Approve the appointment of the ARIC Program Director and the ARIC Program Deputy Director.

f) Review and approve all recruitment and pay decisions.

g) Review and approve decisions to issue each Draw Down Notice.

h) Agree on the appropriate process to manage and disperse funds.

i) Use its reasonable endeavours to resolve any dispute arising between Parties, in accordance with Clause 10.

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